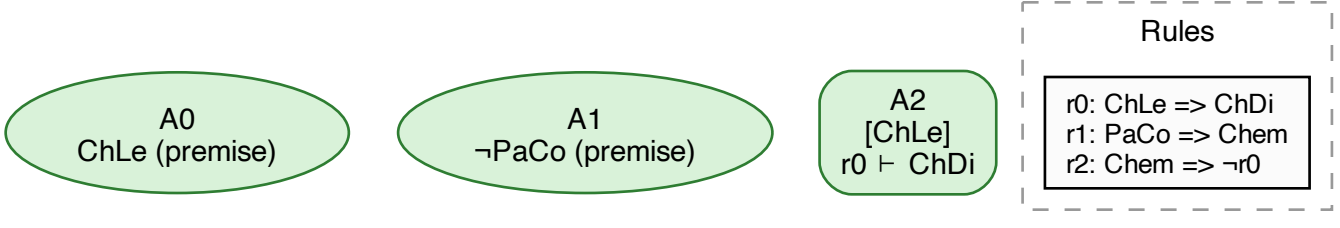Cassazione penale (2023) — Omission